

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

February 23, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:06 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS - Rocky Case, Brian Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne and Dicky Shanor. Absent: Scott Roybal and Jeff White. Also present were: Carol Intlekofer, City Clerk; Sylvia Hackl, City Attorney; Alessandra McCoy, Assistant City Attorney; Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus.

It was noted that spokespersons for the City during negotiations would be Mayor Orr and Councilman Shanor and Union spokespersons would be Jonathan Bertsch, President, and Andrew Dykshorn, Local Union #279. Mayor Orr confirmed that any agreement reached between the City and the Union must be approved by the governing body with the agreement placed on a regular City Council meeting agenda and approved through the Council's usual procedures. Mayor Orr further confirmed that proposed Ground Rules had previously been shared between the parties. Mr. Bertsch requested consideration that, per wording in Section 2 of the City's proposed Rules, the Union's negotiation team be increased from not more than five members to up to eight members, and requested clarification regarding wording in Section 9 with regard to whether interaction with City Council members would be entertained in addition to the City's spokespersons. Mr. Bertsch expressed the Union's preference to approve proposed agreement provisions on a section-by-section basis, which differs from proposed wording in Section 13.

Mr. Shanor moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified City staff requested to be present at the executive session in addition to members of the governing body. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 6:19 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:03 p.m. Mr. Shanor reported the governing body's position on the following sections of the proposed Ground Rules:

Section 2 - The City agrees to increasing the number of members on the Union's negotiating team from five to not more than eight members, and requests the Union agree to increasing the number of members on the City's negotiating team from three to not more than six members.

Section 9 – The City prefers the language as written, however, informally if members of either negotiating team wish to submit written questions to their respective spokespersons, the spokespersons can determine whether to pose the question(s) or not, but there would be no obligation for response by either side.

Section 13 – The City prefers the language as written which states “ ... the collective labor agreement shall be agreed to and signed off as a single document, not on a section-by-section basis”.

Upon inquiry by Mr. Bertsch, it was explained the purpose of requesting an increase to the number of members for the City's negotiating team was to include, if needed, additional staff members. Discussion followed between the spokespersons regarding Sections 9 and 13. Upon request by Mr. Bertsch, Mayor Orr recessed the special meeting at 7:08 p.m. to allow Union representatives to caucus on the City's offer regarding the Ground Rules. [City Clerk note: Audio recording of the meeting was stopped]

Mayor Orr reconvened the special meeting at 7:15 p.m. Mr. Bertsch reported the Union's position was to accept the City's proposed Ground Rules (as amended), and commented on the Union's reasons for previously requesting consideration of changes to Sections 9 and 13. Mr. Shanor moved to approve the Ground Rules as amended, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the governing body present.

Exchange of proposed Collective Labor Agreements by the Union and the City was conducted followed by opening statements by Mr. Bertsch and Mr. Dykshorn relative to the Union's proposal. Mayor Orr recessed the meeting at 7:32 p.m. to allow the Union representatives to set up equipment to use in conjunction with a power point presentation affiliated with the Union's proposed agreement. Mayor Orr reconvened the meeting at 7:55 p.m. and clarified the City's proposed agreement is not “as is” and that it contains a 1% salary increase in the base wage with a contract term of one year. Mr. Bertsch and Mr. Dykshorn presented and reviewed their power point slides. Following conclusion of the presentation and upon inquiry, Mr. Bertsch provided additional information pertaining to data sources used relative to the information in the presentation involving personnel response standards.

It was agreed that two originals of the Ground Rules would be signed at the current meeting, one for each party, and that the next special City Council meetings for negotiation purposes would be held Tuesday, February 28, 2017 and Thursday, March 2, 2017 each beginning

at 6:00 p.m. in City Council Chambers. It was also noted that each side would provide the other with written identification of their negotiation team members.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 8:29 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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